



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG - 4 1994

400 Seventh Street, S.W.
Washington D.C. 20590

DOT-E 11293

EXPIRATION DATE: September 1, 1994
or upon the completion of one
shipment, whichever occurs first.

1. GRANTEE: All Pure Chemical Company, Inc., Tracy, CA.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the shipment of a DOT Specification 106A500X multi-unit tank car tank (ton tank), containing a division 2.3 material, meeting all DOT requirements except that the ton tank has a defective unloading valve and a Chlorine Institute "B" kit attached. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(b)(1); 173.31(b)(3); 179.300-12(b); 179.300-13(a); and 179.300-14.
5. BASIS: This emergency exemption is based on All Pure Chemical Company Inc.'s application of July 19, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Sulfur dioxide	2.3	UN 1079	N/A

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT specification 106A500X multi-unit tank car tank (ton tank) with a defective unloading valve which has been equipped with a Chlorine Institute "B" kit to prevent the emission of sulfur dioxide vapors.
 - b. TESTING - The ton tank must be repaired and retested prior to the ton tank being refilled.

8. SPECIAL PROVISIONS:

a. Shipment of the ton tank is authorized from the Placer County Utilities Sewer Plant, Auburn, CA, to Snowden Enterprises, Inc., Modesto, CA, a distance of approximately 125 miles utilizing the most direct route.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107 seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG - 4 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

AUG - 4 1994

Continuation of DOT-E 11293 (1st Rev.)

Page 3

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA